



U.S. Department
of Transportation

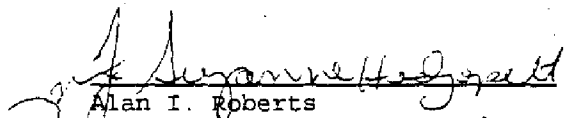
**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9460 (EXTENSION)
FIRST REVISION August 23, 1994

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9460 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 7 1995

(DATE)

Dist: PHWA

EXEMPTION HOLDER

APPLICATION DATE

Tracor Aerospace, Inc.
East Camden, AR

January 13, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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400 Seventh Street, S.W.
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AUG 23 1994

DOT-E 9460
(FIRST REVISION)

1. Tracor MBA, East Camden, Arkansas, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a Division 1.1A for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a Division 1.1A explosive in a specially prescribed packaging, and provides no relief from any regulation other than as specifically stated.

Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991.

2. BASIS. This exemption is based on an application from Tracor MBA dated July 26, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). An explosive material composed essentially of zirconium-nickel alloy, aluminum powder and potassium perchlorate; classed as Division 1.1A; UN0473.

4. PROPER SHIPPING NAME (49 CFR 172.101). Substance, explosive, n.o.s.

5. REGULATION AFFECTED. 49 CFR 172.101.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is sealed velostat bag containing not more than one pound of powder or pellets. Outside packaging must be DOT Specification 17C or 17H metal drums. Bags containing explosives must be cushioned in drums with sawdust wet with one part by weight of water to one part of sawdust. There must be at least one inch of wet sawdust between any two bags and at least two inches of wet sawdust between any bag and the inside of the drum. Not more than 10 velostat bags may be placed in one drum.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

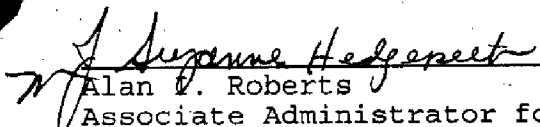
d. Outside packagings must be labeled with the EXPLOSIVE 1

e. Outside packagings must be marked "SUBSTANCE, EXPLOSIVE, N.O.S. DANGEROUS - DO NOT STORE OR LOAD WITH ANY HIGH EXPLOSIVE".

9. REPORTING REQUIREMENTS. The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

10. EXPIRATION DATE. March 1, 1995.

Issued at Washington, D.C.:


Alan V. Roberts
Associate Administrator for
Hazardous Materials Safety

AUG 23 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, DC 20590: Attention DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA